IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT – IV

ITEM No. 2
CA No. 525/ND/2021, CAA-104/ND/2021

IN THE MATTER OF:
EBRO Tilda Pvt. Ltd. … Applicant/Petitioner
And Ashoka Buildcity Pvt. Ltd.
Order under Section 230-232.

Order delivered on 30.11.2021

Coram:
DR. DEEPTI MUKESH,
HON'BLE MEMBER (JUDICIAL)
MS. SUMITA PURKAYASTHA,
HON'BLE MEMBER (TECHNICAL)
PRESENT:
For the Applicant :

ORDER

CA No. 525/ND/2021: This is an application filed by petitioners seeking rectification of the typographical error in Page No. 3, Para 2 with respect to the observation of holding/dispensation of the meetings of Shareholders and Creditors.

Learned Counsel took up through the order of First Motion application wherein the meetings of both the applicant-companies, Shareholders, Secured and Unsecured Creditors where order to be convened, but inadvertently in present order in Para 2, it is mentioned that meetings of Equity Shareholders of both the companies were dispensed with. The said stands rectified, as the meetings of Equity Shareholders of demerger and Resulting-Company were held as directed.

Further in Para 4, sub-Clause(1) the date of hearing of petition is mentioned, as 28th December, 2021 since from 25th December, 2021 up-to 2nd January, 2022 being Christmas vacation, hence that date to be changed on working day after vacation. Accordingly, the next of hearing of petition shall be changed from 28th December, 2021 to 25th January, 2022. Learned Counsel further states that though the directions were issued for serving notice for Official Liquidator, but the present petition is for demerger, the service to the Official Liquidator is obviated. The same is recorded.

Application is allowed and disposed of in terms of above order.

SD/- **SD/-**

SUMITA PURKAYASTHA **DR. DEEPTI MUKESH**
MEMBER (TECHNICAL) **MEMBER (JUDICIAL)**

Md Saddam-30.11.2021